

POWELL, J., dissenting

445 U. S.

Although the statute does not refer to immunities, this Court has held that the law "is to be read in harmony with general principles of tort immunities and defenses rather than in derogation of them." *Imbler v. Pachtman*, 424 U. S. 409, 418 (1976); see *Tenney v. Brandhove*, 341 U. S. 367, 376 (1951).

This approach reflects several concerns. First, the common-law traditions of immunity for public officials could not have been repealed by the "general language" of § 1983. *Tenney v. Brandhove*, *supra*, at 376; see *Imbler v. Pachtman*, *supra*, at 421-424; *Pierson v. Ray*, 386 U. S. 547, 554-555 (1967). In addition, "the public interest requires decisions and action to enforce laws for the protection of the public." *Scheuer v. Rhodes*, 416 U. S. 232, 241 (1974). Because public officials will err at times, "[t]he concept of immunity assumes . . . that it is better to risk some error and possibly injury from such error than not to decide or act at all." *Id.*, at 242; see *Wood v. Strickland*, 420 U. S. 308, 319-320 (1975). By granting some immunity to governmental actors, the Court has attempted to ensure that public decisions will not be dominated by fears of liability for actions that may turn out to be unconstitutional. Public officials "cannot be expected to predict the future course of constitutional law. . . ." *Procunier v. Navarette*, 434 U. S. 555, 562 (1978).

In response to these considerations, the Court has found absolute immunity from § 1983 suits for state legislators, *Tenney v. Brandhove*, *supra*, judges, *Pierson v. Ray*, *supra*, at 553-555, and prosecutors in their role as advocates for the State, *Imbler v. Pachtman*, *supra*. Other officials have been granted a qualified immunity that protects them when in good faith they have implemented policies that reasonably were thought to be constitutional. This limited immunity extends to police officers, *Pierson v. Ray*, *supra*, at 555-558, state executive officers, *Scheuer v. Rhodes*, *supra*, local school board members, *Wood v. Strickland*, *supra*, the super-